

25STCV37281 25STCV37281

County: los-angeles

Division: Civil Law and Motion

Department: 407

Hearing date: 2026-07-02

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Case Number: 25STCV37281 Hearing Date: July 2, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

2, 2026 TRIAL DATE: Not

set

CASE: Luis E. Valle, On Behalf of Himself and

Tax Payers of the State of California v. Richard Camacho, et al.

CASE NO.: 25STCV37281

MOTION

FOR PRELIMINARY INJUNCTION

MOVING

PARTY: Plaintiff Luis E. Valle

RESPONDING

PARTY: Defendant Los Angeles Community College District

I. INTRODUCTION

On

December 23, 2025, Plaintiff Luis E. Valle dba as Valle Grande Construction, on behalf of himself and tax payers of the State of California, commenced this action against defendants Richard Camcho, Vanir Construction Management, Inc.,

Hector Diaz, VIS Inspection Services, Inc., Janay Wilson, Cordoba Corporation, Marco Tarantino, Julio Benitez, Jacobs Engineering Group Inc., Los Angeles Community College District ("LACCD").

Plaintiff brings causes of action for breach of contract, breach of implied covenant of good faith and fair dealing, statutory retaliation, civil extortion, civil conspiracy, declaratory and injunctive relief, and retaliatory breach of contract.

On May 20, 2026, Plaintiff filed a motion for preliminary injunction. Plaintiff seeks an order directing LACCD to deposit or release the undisputed contractual sum of \$350,000.

On June 4, 2026, LACCD filed an opposition.

On the same day, Plaintiff filed a reply.

II. LEGAL STANDARD

In determining whether to issue a preliminary injunction, the trial court considers two factors: (1) the reasonable probability that the plaintiff will prevail on the merits at trial; and (2) a balancing of the "irreparable harm" that the plaintiff is likely to sustain if the injunction is denied compared to the harm that the defendant is likely to suffer if the court grants a preliminary injunction. (Code Civ. Proc., § 526(a); 14859 Moorpark Homeowner's Assn. v. VRT Corp. (1998) 63 Cal.App.4th 1396, 1402; Pillsbury, Madison & Sutro v. Schectman (1997) 55 Cal.App.4th 1279, 1283.)

The court's determination is guided by a "mix" of the potential-merit and interim-harm factors; the greater the plaintiff's showing on one, the less must be shown on the other to support an injunction. (Butt v. State of California (1992) 4 Cal.4th 668, 678 (Butt).) The court must consider both factors. The two factors are a sliding scale – the stronger the showing of probability of prevailing, the lesser showing is required for irreparable harm. (Butt, 4 Cal.4th at p. 678; The Right Side Coalition v. Los Angeles Unified School District (2008) 160 Cal.App.4th 336 (reversing denial of preliminary injunction based solely on balancing of hardships without considering probability of prevailing).) The

plaintiff must make some showing of each factor.¿ (Jessen v. Keystone Savings & Loan Assn. (1983) 142 Cal.App.3d 454, 459.) A court may not issue a preliminary injunction if the plaintiff cannot possibly prevail on the merits even if a strong showing of irreparable harm has been made. (Butt, 4 Cal.4th at pp. 677-78.)

The court's ruling on a preliminary injunction is not an adjudication of the merits, is not a trial, and does not require a statement of decision. (Cohen v. Board of Supervisors (1985) 40 Cal.3d 277, 286; People v. Landlords Professional Services, Inc. (1986) 178 Cal.App.3d 68, 70-71.)¿ The court is not required to state its reasons for granting or denying a preliminary injunction; a cursory statement is sufficient. (City of Los Altos v. Barnes (1992) 3 Cal.App.4th 1193, 1198.)

III. DISCUSSION

After consideration of the briefing and the case file, the court will deny the motion. Plaintiff has an adequate remedy at law: money damages. Further, Plaintiff does not demonstrate a likelihood of success on the merits. Plaintiff submits only a Notice of Default sent by LACCD to Plaintiff which demonstrates only that there is dispute over Plaintiff's claims to unpaid contractual sums. (See Exhibit attached to the Valle Decl.)

IV. CONCLUSION

Based on the foregoing, the motion for preliminary injunction is DENIED.

Defendant is ordered to give notice, unless waived.

Dated: July 2, 2026

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ζ Brock T. Hammond

ζ Judge of the Superior
Courtζ